

STATE OF NEW YORK

4906--A

Cal. No. 645

2025-2026 Regular Sessions

IN SENATE

February 14, 2025

Introduced by Sen. FAHY -- read twice and ordered printed, and when printed to be committed to the Committee on Crime Victims, Crime and Correction -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, passed by Senate and delivered to the Assembly, recalled, vote reconsidered, restored to third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the executive law, in relation to providing for certain victim statements to be taken at their workplace instead of the police department

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 642 of the executive law is amended by adding a new
2 subdivision 6 to read as follows:

3 6. A victim of an assault may choose to make their statement at their
4 workplace provided such workplace was the scene of the assault and is a
5 hospital, emergency medical facility, nursing home, or residential
6 health care facility as defined in section twenty-eight hundred one of
7 the public health law, or is a facility or hospital as defined in
8 section 1.03 of the mental hygiene law. Law enforcement officers shall
9 inform the victim of their right to have their statement be taken at
10 such workplace when officers have reason to believe the victim was
11 assaulted pursuant to section 120.05 of the penal law.

12 § 2. This act shall take effect on the one hundred twentieth day after
13 it shall have become a law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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